

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 09
JUDICIAL OFFICER: JOHN P DEVINE
HEARING DATE: 12/22/2025

ALL REMOTE APPEARANCES WILL BE BY ZOOM

For matters where an appearance is required, the parties may appear by Zoom unless told to appear by another method. For all other matters, if argument is requested, appearances may be by Zoom or in person

Please email Dept09@contracosta.courts.ca.gov and opposing counsel by 4:00 p.m. if oral argument is requested and include specification to be argued.

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/1602392251?pwd=WmE4bG5iK0J3WWtTOHpteVBiRlBMQT09>

Law & Motion

1. 9:00 AM CASE NUMBER: C22-01552
CASE NAME: SCHAEFER VS. BNSF RAILWAY COMPANY
*HEARING ON MOTION IN RE: TO STAY THE ACTION PENDING DETERMINATION OF APPEAL FILED BY BNSF
FILED BY:
TENTATIVE RULING:

Hearing Required. Appearance by Zoom is acceptable.

2. 9:00 AM CASE NUMBER: C22-01835
CASE NAME: MICHAELA STRAZNICKA VS. REYNA HIGUERA
*HEARING ON MOTION IN RE: PROTECTIVE ORDER
FILED BY: BUILDING SERVICES/SYSTEM MAINTENANCE, INC.
TENTATIVE RULING:

Vacated.

3. 9:00 AM CASE NUMBER: C23-02785
CASE NAME: M.P.G. VS. ANTIOCH UNIFIED SCHOOL DISTRICT
***HEARING ON MOTION IN RE: COMPEL FURTHER RESPONSES AND PRODUCTION OF STUDENT RECORDS RE PERPETRATOR STUDENT J.M.C.**
FILED BY: M.P.G.
TENTATIVE RULING:

Plaintiff's Motion to Compel Further Responses and Production of Student Records Regarding Perpetrator Student J.M.C. is granted.

Plaintiff's Motion is made pursuant to CFR § 99.31.

The Court orders as follows:

Within 21 days of this Order, Defendant AUSD must produce unredacted copies of all responsive documents regarding perpetrator student J.M.C., including records withheld pursuant to the parental objection under FERPA and any responsive records not subject to FERPA protections. Defendant AUSD may designate these documents CONFIDENTIAL pursuant to the terms of the Protective Order.

4. 9:00 AM CASE NUMBER: C23-03023
CASE NAME: NIMA ATAEI VS. FCA US LLC
***HEARING ON MOTION IN RE: SET TRIAL DATE OR SCHEDULE TRIAL SETTING CONFERENCE**
FILED BY: ATAEI, NIMA
TENTATIVE RULING:

Appearance required.

5. 9:00 AM CASE NUMBER: C23-03102
CASE NAME: ALBERTO MALDONADO VS. RICARDO SALAS
***HEARING ON MOTION IN RE: FOR DETERMINATION OF GOOD FAITH SETTLEMENT**
FILED BY: SALAS, RICARDO
TENTATIVE RULING:

Before the Court is Defendant Richard Salas' Motion for Determination of Good Faith Settlement ("Motion").

Defendant Salas' Motion is **denied without prejudice** for the reasons set forth below.

Factual and Procedural Background

This matter pertains to a multiple motor vehicle accident that occurred on April 1, 2022, at